potatoes grown in certain designated counties in Idaho and Malheur County, Oregon, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and upon the basis of the recommendations and information submitted by the Administrative Committee established under said order, and upon other available information, it is hereby found that the limitation of shipments of such potatoes as hereinafter provided will tend to effectuate the declared policy of the act.

(2) It is hereby further found that:

(i) Shipments of potatoes from the aforesaid production area have already begun for the current season and shipments of potatoes covered by this order will increase to sizable volume within the last week of July and continue at seasonally high levels throughout the remainder of the shipping season;

(ii) More orderly marketing in the public interest, than would otherwise prevail, will be promoted by regulating the shipment of potatoes in the manner set forth below on and after the effective date hereinafter set forth;

(iii) Compliance with this order will not require any preparation on the part of handlers which cannot be completed by the effective date hereof;

(iv) The Administrative Committee, established pursuant to § 957.7 of Marketing Order No. 57, is prepared to exercise its powers and perform its duties assigned by Marketing Order No. 57; and

(v) Compliance with the preliminary notice, public rule-making procedure, and the 30-day effective date requirements of the Administrative Procedure Act (5 U. S. C. 1001 et seq.), is impracticable, unnecessary and contrary to the public interest for the reasons hereinbefore set forth.

(b) *Order.* (1) On and after August 6, 1948, no handler shall ship potatoes subject to the provisions of Marketing Order No. 57, which do not meet the requirements of U. S. No. 2 or better grade, as such grades are defined in said U. S. Standards for Potatoes, except that a mixture of varieties may be shipped: *Provided,* That no potatoes of the U. S. No. 2 grade or better grades, as defined in said U. S. Standards for Potatoes, which are less than 1½ inches in diameter, may be shipped in addition to the tolerance by weight for undersize as specified for the respective grade in said U. S. Standards for Potatoes.

(2) During the period beginning August 6, 1948, and ending June 30, 1949, no handler shall ship potatoes of the Russet Burbank variety which are of sizes less than 2 inches in diameter or which are of sizes less than 4 ounces in weight, subject to tolerance for size determined in accordance with said U. S. Standards for Potatoes.

(3) As used in this section the terms "potatoes," "handler," "ship," and "U. S. Standards for Potatoes," shall have the same meaning as when used in Marketing Order No. 57.

(48 Stat. 31, 670, 675, 49 Stat. 750, 50 Stat. 246, 61 Stat. 208, 707; 7 U. S. C. 601 et seq.; 12 F. R. 4534, 6 F. R. 4508)

Done at Washington, D. C., this 30th day of July 1948.

[SEAL] C. F. KUNKEL,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 48-7048; Filed, Aug. 2, 1948; 8:55 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 51988]

PART 6—AIR COMMERCE REGULATIONS

REVOCATION OF DESIGNATION OF THE ROOSEVELT FLYING SERVICE BASE (CURRIE COMMON PARK), WEST PALM BEACH, FLA., AS AIRPORT OF ENTRY

JULY 27, 1948.

The designation of the Roosevelt Flying Service Base (Currie Common Park), West Palm Beach, Florida, as an airport of entry for civil aircraft and merchandise carried thereon arriving from places outside the United States, as defined in section 9 (b) of the Air Commerce Act of 1926 (49 U. S. C. 179 (b)), is hereby revoked effective at the close of business August 31, 1948.

The list of airports of entry in § 6.12, Customs Regulations of 1943 (19 CFR, Cum. Supp., 6.12) as amended, is hereby further amended by deleting therefrom the location and name of said base.

Notice of the proposed revocation of the designation of this seaplane base as an airport of entry was published in the FEDERAL REGISTER on July 2, 1948 (13 F. R. 3701), pursuant to the provisions of section 4 of the Administrative Procedure Act (5 U. S. C. 1003). The revocation is made for the reason that the site embracing the seaplane base is no longer available for the use of the owners and operators of seaplanes.

(Sec. 7 (b), 44 Stat. 572, Sec. 711, 58 Stat. 714, sec. 5, 60 Stat. 1049; 49 U. S. C. 177 (b))

[SEAL] JOHN S. GRAHAM,
Acting Secretary of the Treasury.

[F. R. Doc. 48-6956; Filed, Aug. 2, 1948; 8:58 a. m.]

TITLE 24—HOUSING CREDIT

Chapter I—Home Loan Bank Board

[No. 896]

PART 2—ORGANIZATION OF THE BANKS

ELECTION OF DIRECTORS OF FEDERAL HOME LOAN BANKS

Correction

In Federal Register Document No. 48-6187, appearing at page 3890 of the issue for Tuesday, July 13, 1948, the following changes should be made in § 2.4 (a):

1. In subparagraph (10), line 12 should read "the Board will designate for each State".

2. In the sixth line of the first column on page 3892 the word "action" should read "election".

3. In the ninth line of subparagraph (16) the word "subjected" should read "subject".

TITLE 36—PARKS AND FORESTS

Chapter I—National Park Service, Department of the Interior

PART 01—ORGANIZATION AND PROCEDURE

DELEGATION TO DISTRICT FORESTERS INVOLVING CERTAIN LANDS IN OREGON

CROSS REFERENCE: For an addition to the list of delegations of authority contained in §§ 01.50 to 01.54, inclusive, see Title 43, § 4.341, *infra*, authorizing the district foresters to approve applications from certain owners of mining claims in Oregon to cut and use timber.

TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2451]

PART 4—DELEGATIONS OF AUTHORITY

BUREAU OF LAND MANAGEMENT; FUNCTIONS WITH RESPECT TO CUTTING OF TIMBER ON CERTAIN MINING CLAIMS

The following center head and section are added to Part 4:

DELEGATION TO DISTRICT FORESTERS INVOLVING CERTAIN LANDS IN OREGON

§ 4.341 *Functions with respect to the cutting of timber on certain mining claims.* Pursuant to the act of April 8, 1948 (62 Stat. 162), the district foresters are authorized to approve applications from owners of mining claims located since August 28, 1937, on revested Oregon and California Railroad and reconveyed Coos Bay Wagon Road grant lands, to cut and use so much of the timber on the mining claims as is necessary in the development and operation of the mines, until such time as the timber is otherwise disposed of by the United States. (R. S. 161, 453, 2478; 5 U. S. C. 22, 43 U. S. C. 2, 1201)

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 27, 1948.

[F. R. Doc. 48-6917; Filed, Aug. 2, 1948; 8:46 a. m.]

Chapter I—Bureau of Land Management, Department of The Interior

Appendix—Public Land Orders

[Public Land Order 501]

ARIZONA AND NEVADA

REVOCATION OF EXECUTIVE ORDER NO. 6065 OF MARCH 3, 1933, AS AMENDED, COVERING BOULDER CANYON NATIONAL WILDLIFE REFUGE; PARTIAL REVOCATION OF EXECUTIVE ORDER NO. 5105 OF MAY 3, 1929, AND EXECUTIVE ORDER NO. 5339 OF APRIL 25, 1930, COVERING TEMPORARY WITHDRAWALS FOR NATIONAL MONUMENT PURPOSES

By virtue of the authority vested in the President by the act of June 25, 1910,

36 Stat. 847, as amended by the act of August 24, 1912, 37 Stat. 497 (43 U. S. C. 141–143), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6065 of March 3, 1933, as amended by Executive Order No. 6891, of October 30, 1934, establishing the Boulder Canyon Wildlife Refuge, which reserved and set apart certain hereinafter-described areas as a refuge and breeding ground for wild birds and animals, is hereby revoked. Executive Orders No. 5105 of May 3, 1929, and No. 5339 of April 25, 1930, temporarily withdrawing certain lands pending determination as to their inclusion in a national monument, are hereby revoked as to the lands in the hereinafter-described areas listed under these respective orders.

Effective upon the signing of this order, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on September 23, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from September 23, 1948, to December 23, 1948, inclusive, the surveyed public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from September 3, 1948, to September 22, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on September 23, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on December 24, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from December 4, 1948, to December 23, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on December 24, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, at Phoenix, Arizona, or the District Land Office, at Carson City, Nevada, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, at Phoenix, Arizona, or the District Land Office, at Carson City, Nevada.

The lands affected by this order are described as follows:

Land withdrawn by Executive Order No. 6065, as amended:

ARIZONA

GILA AND SALT RIVER MERIDIAN

T. 31 N., R. 15 W., all fractional unsurveyed portion north and west of Hualpai Indian Reservation.
T. 32 N., R. 15 W., secs. 4 to 9, inclusive, sec. 16 to 21, inclusive, and secs. 28 to 33, inclusive (unsurveyed).
T. 30 N., R. 16 W., secs. 5, 6, 7, 8, and 18 (partly unsurveyed).
T. 31 N., R. 16 W., (unsurveyed).
T. 32 N., R. 16 W., (unsurveyed).
T. 33 N., R. 16 W., (unsurveyed).
T. 30 N., R. 17 W., secs. 1 to 18, inclusive (partly unsurveyed).
T. 31 N., R. 17 W.
T. 32 N., R. 17 W., (unsurveyed).
T. 30 N., R. 18 W., secs. 1 to 21, inclusive, and secs. 28 to 30, inclusive (partly unsurveyed).
T. 30 N., R. 19 W., secs. 1 to 18, inclusive, and secs. 24 and 25 (unsurveyed).
T. 31 N., R. 19 W. (unsurveyed).
T. 32 N., R. 19 W. (unsurveyed).
T. 30 N., R. 20 W., secs. 5 to 8, inclusive (unsurveyed).
T. 31 N., R. 20 W. (unsurveyed).
T. 32 N., R. 20 W. (unsurveyed).
T. 30 N., R. 21 W., secs. 1 and 12 (unsurveyed).
T. 31 N., R. 21 W. (unsurveyed).
T. 32 N., R. 21 W. (unsurveyed).
T. 30 N., R. 22 W. (unsurveyed).
T. 31 N., R. 22 W. (unsurveyed).
T. 32 N., R. 22 W. (unsurveyed).
T. 30 N., R. 23 W.
T. 31 N., R. 23 W.
T. 32 N., R. 23 W.

The areas described, including both public and non-public lands, aggregate approximately 312,047 acres.

All of the public lands in the above-described areas in Arizona are withdrawn either by Executive Order No. 5339 of April 25, 1930, pending determination as to inclusion of the lands in a national monument, or by various orders of the Secretary of the Interior withdrawing lands for reclamation purposes.

NEVADA

MOUNT DIABLO MERIDIAN

T. 20 S., R. 63 E., sec. 36 (unsurveyed).
T. 23 S., R. 63 E., secs. 1, 12, and 13, and that portion of secs. 2, 11, 14, 23, and 24 within Boulder Canyon Project Federal Reservation.
T. 21 S., R. 63½ E., secs. 1, 12, and 13 (unsurveyed).
T. 23 S., R. 63½ E., secs. 12, 13, and 24, and that portion of sec. 1 within Boulder Canyon Project Federal Reservation.
T. 20 S., R. 64 E., secs. 31 and 32.
T. 21 S., R. 64 E. (unsurveyed).
T. 22 S., R. 64 E.
T. 23 S., R. 64 E., secs. 1 to 24, inclusive.
T. 20 S., R. 65 E., secs. 19 to 36, inclusive.
T. 21 S., R. 65 E.
T. 22 S., R. 65 E.
T. 23 S., R. 65 E., secs. 5 to 8, inclusive, and secs. 16 to 21, inclusive (unsurveyed).
T. 20 S., R. 66 E., secs. 19 to 36, inclusive (unsurveyed).
T. 21 S., R. 66 E. (unsurveyed).
T. 17 S., R. 67 E., secs. 24 and 25.
T. 18 S., R. 67 E., secs. 13, 24, 25, and 36.
T. 19 S., R. 67 E., secs. 1, 12, 13, 24, 25, and 36.
T. 20 S., R. 67 E., secs. 1 and 2, secs. 11 to 14, inclusive, and secs. 19 to 36, inclusive (unsurveyed).
T. 21 S., R. 67 E., (unsurveyed).
T. 15 S., R. 68 E., secs. 25, 26, 35, and 36.
T. 16 S., R. 68 E., secs. 1 and 2, secs. 11 to 14, inclusive, and secs. 19 to 36, inclusive.
T. 17 S., R. 68 E., secs. 1 to 5, inclusive, secs. 8 to 30, inclusive, and secs. 32 to 36, inclusive.
T. 18 S., R. 68 E., secs. 1 to 5, inclusive, and secs. 7 to 36, inclusive.
T. 19 S., R. 63 E., secs. 2 to 11, inclusive, secs. 14 to 23, inclusive, and secs. 26 to 35, inclusive.
T. 20 S., R. 68 E., secs. 2 to 11, inclusive, secs. 14 to 23, inclusive, and secs. 25 to 36, inclusive.
T. 21 S., R. 68 E.
T. 15 S., R. 69 E., secs. 29 to 32, inclusive.
T. 16 S., R. 69 E., secs. 5, 6, 7, 18, 19, 30, 31, and 32.
T. 17 S., R. 69 E., secs. 4 to 10, inclusive, secs. 15 to 21, inclusive, and secs. 28 to 33, inclusive.
T. 18 S., R. 69 E., secs. 5, 6, 7, 8, and 18.
T. 20 S., R. 69 E., secs. 31 to 36, inclusive.
T. 21 S., R. 69 E., (unsurveyed).
T. 22 S., R. 69 E., (unsurveyed).
T. 20 S., R. 70 E., secs. 23 to 26, inclusive, and secs. 31 to 36, inclusive (unsurveyed).
T. 21 S., R. 70 E.
T. 22 S., R. 70 E., (unsurveyed).
T. 20 S., R. 71 E., secs. 3, 4, 9, 10, secs. 15 to 22, inclusive, and secs. 27 to 33, inclusive (unsurveyed).
T. 21 S., R. 71 E., (unsurveyed).

The areas described, including both public and non-public lands, aggregate approximately 346,603 acres.

With the exception of the public lands in secs. 5, 6, 7, and 8, T. 16 S., R. 68 E., portions of sec. 17, T. 17 S., R. 69 E., and sec. 33, T. 20 S., R. 69 E., all of the public lands in the above-described areas in Nevada are withdrawn either by Executive Order No. 5105 of May 3, 1929, or Executive Order No. 5339 of April 25, 1930, pending determination as to inclusion of the lands in a national monument, or by various orders of the Secre-

tary of the Interior withdrawing lands for reclamation purposes.

EXECUTIVE ORDER No. 5105

NEVADA

Mount Diablo Meridian

T. 15 S., R. 66 E.,
Secs. 1 to 24, inclusive;
Sec. 25, W½;
Secs. 26 to 35, inclusive;
Secs. 36, W½NW¼ and NW¼SW¼.
T. 16 S., R. 66 E.,
Sec. 2, W½ and W½E½;
Secs. 3 to 10, inclusive;
Sec. 11, W½ and W½E½;
Sec. 14, W½ and W½E½;
Secs. 15 to 22, inclusive;
Sec. 23, W½NE¼ and W½;
Secs. 27 to 34, inclusive.
T. 17 S., R. 66 E.,
Secs. 3 to 10, inclusive, secs. 15 to 22, inclusive, and secs. 27 to 34, inclusive.
T. 15 S., R. 67 E.,
Secs. 1 to 28, inclusive;
Sec. 29, E½;
Sec. 32, E½;
Secs. 33 to 36, inclusive.
T. 16 S., R. 67 E.,
Secs. 1 to 4, inclusive;
Sec. 5, E½;
Sec. 8, E½;
Secs. 9 to 16, inclusive;
Sec. 17, E½;
Secs. 21 to 27, inclusive;
Sec. 28, N½ and SE¼;
Sec. 33, E½;
Secs. 34 and 35;
Sec. 36, NE¼NE¼, W½, and W½E½.
T. 15 S., R. 68 E.
T. 16 S., R. 68 E.,
Secs. 1 to 18, inclusive.

The areas described, including both public and non-public lands, aggregate approximately 126,052 acres.

EXECUTIVE ORDER No. 5339

ARIZONA

Gila and Salt River Meridian

T. 35 N., R. 4 W., unsurveyed.
Secs. 1 to 9, inclusive;
Sec. 10, W½;
Sec. 15, W½;
Secs. 16 to 21, inclusive;
Sec. 22, W½.
T. 32 N., R. 5 W.,
Secs. 19 to 36, inclusive.
T. 35 N., R. 5 W., unsurveyed,
Secs. 1 to 24, inclusive.
T. 33 N., R. 6 W, unsurveyed,
That part south of the Grand Canyon National Monument.
T. 35 N., R. 6 W.,
Secs. 1 to 24, inclusive.
T. 33 N., R. 7 W, unsurveyed,
Those parts of secs. 25, 26, 27, and 33 south of the Grand Canyon National Monument; secs. 34, 35, and 36.
T. 34 N., R. 7 W.,
Secs. 3 to 9, inclusive;
Sec. 10, W½;
Secs. 16 to 21, inclusive;
Sec. 28, W½;
Secs. 29 to 32, inclusive;
Sec. 33, W½.
T. 35 N., R. 7 W.,
Secs. 1 to 24, inclusive;
Sec. 27, W½NE¼, NW¼, and N½SW¼;
Secs. 28 to 33, inclusive.
T. 33 N., R. 8 W.,
Those parts of secs. 5, 8, and 17 west of the Grand Canyon National Monument;
Secs. 6, 7, and 18.
T. 33 N., R. 9 W.,
Secs. 1 to 21, inclusive;
Secs. 28 to 30, inclusive;
T. 33 N., R. 10 W.,
Secs. 1 to 31, inclusive.
T. 33 N., R. 11 W.
T. 33 N., R. 12 W.,
Secs. 4 to 9, inclusive;
Secs. 16 to 21, inclusive;
Secs. 28 to 33, inclusive.
T. 33 N., R. 13 W.
T. 34 N., R. 13 W.
T. 33 N., R. 14 W.
T. 34, N., R. 14 W., unsurveyed.
T. 33 N., R. 15 W., unsurveyed,
Secs. 1 to 3, inclusive;
Secs. 10 to 15, inclusive;
Secs. 22 to 27, inclusive;
Secs. 34 to 36, inclusive.
T. 34 N., R. 15 W., unsurveyed.
T. 35 N., R. 15 W., unsurveyed.
T. 34 N., R. 16 W.
T. 35 N., R. 16 W.
T. 27 N., R. 21 W., partly unsurveyed.

The areas described, including both public and non-public land, aggregate approximately 383,173 acres.

NEVADA

MOUNT DIABLO MERIDIAN

T. 24 S., R. 64 E.,
Secs. 2 to 11, inclusive;
Secs. 14 to 23, inclusive;
Secs. 26 to 35, inclusive.
T. 17 S., R. 67 E.,
Sec. 1, NW¼;
Secs. 2, 3, 10, and 11;
Sec. 12, S½NW¼, SW¼, NW¼SE¼, and S½SE¼.
T. 16 S., R. 68 E.,
Secs. 1 to 18, inclusive.
T. 16 S., R. 69 E.
T. 17 S., R. 69 E.
T. 18 S., R. 69 E.,
Secs. 1 to 3, inclusive;
Secs. 9 to 17, inclusive;
Secs. 20 to 29, inclusive;
Secs. 32 to 36, inclusive.
T. 19 S., R. 69 E.,
Secs. 1 to 24, inclusive;
Secs. 27 to 34, inclusive.
T. 20 S., R. 69 E.,
Secs. 3 to 10, inclusive;
Secs. 15 to 22, inclusive;
Secs. 27, 28, 33, and 34.
T. 17 S., R. 70 E.
T. 18 S., R. 70 E., unsurveyed.
T 19 S., R. 70 E., unsurveyed.
T. 20 S., R. 70 E., unsurveyed,
Secs. 1 to 11, inclusive;
Secs. 14 to 22, inclusive;
Secs. 27 to 30, inclusive.
T. 17 S., R. 71 E.
T. 18 S., R. 71 E.
T. 19 S., R. 71 E.

The areas described, including both public and non-public land, aggregate approximately 249,448 acres.

Portions of the lands restored by the partial revocation of Executive Orders Nos. 5105 and 5339 are covered by other withdrawals and reservations and some of the lands have been patented. Information as to the status of any particular tract in Arizona will be furnished on request by the District Land Office at Phoenix and in Nevada by the District Land Office at Carson City.

These lands lie in the area above Hoover Dam where the Colorado River and the lower stretches of its tributaries are confined in deep and barren canyons, resulting in a rugged and rough topography. In between the canyons may be relatively small land areas that range from level to rough in topography. The vegetative cover consists of sage and desert shrubs and grasses. Annual rainfall in the Lake Meade area is under ten inches. The soils may vary in texture from clays to gravel, due to their composition being formed principally of horizontal strata of sedimentaary rocks. Many soil formations of hard sandstone and limestone separated by softer shale, often highly colored, have resulted in topographic and geological formations of unusual character.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JULY 22, 1948.

[F. R. Doc. 48-6919; Filed, Aug. 2, 1948; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 12—AMATEUR RADIO SERVICE

TYPES OF EMISSION

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 28th day of July 1948:

The Commission having under consideration the matter of amending § 12.114 (b) of the rules governing amateur radio service for the purpose of continuing beyond August 1, 1948 the present temporary authority for amateurs to use narrow band frequency or phase modulation emission for radiotelephone communication in the bands 3850 to 3900 kc; 14200 to 14250 kc; 28.5 to 29.0 Mc and 51.0 to 51.2 Mc; and

It appearing, that the results so far achieved in conducting this type of operation in these bands indicate that such operation apparently has certain definite advantages over the conventional amplitude modulation type of operation, especially in connection with accomplishing radiotelephone communication through heavy interference and with reducing or eliminating amateur interference to broadcast reception in thickly populated areas; and

It further appearing, that the Commission has received one or more recommendations that authority to use narrow band frequency or phase modulation emission for radiotelephone communication in the foregoing bands be established on a permanent basis in the amateur rules; and

It further appearing, that additional information is needed by the Commission in relation to the matter covered by the recommendations received, which information cannot be obtained before August 1, 1948 when the present authority for this type of operation terminates, that it is desirable that there be no interruption in this type of operation during the period that the Commission wishes to study the results thereof, that it is, therefore, urgent that § 12.114 (b) be amended effective not later than August 1, 1948 in order to extend beyond that date the authority for this type of operation, and, therefore, that the public notice and procedure provided for in section 4 of the Administrative Procedure Act are impracticable, and that for the same reasons, and also because the extension of the mentioned authority will continue to relieve a restriction which would otherwise exist, such extension